

26STCP03026 26STCP03026

County: los-angeles
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Department: 506
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Case Number: 26STCP03026 Hearing Date: September 22, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

J.G. WENTWORTH ORIGINATIONS,
LLC,

Petitioner,

vs.

T.M.,

Respondent.

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CASE NO.: 26STCP03026

[TENTATIVE] ORDER DENYING AMENDED PETITION
FOR APPROVAL OF TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

Dept. 506

8:30 a.m.

September 22, 2026

On August 10, 2025, Petitioner
J.G. Wentworth Originations, LLC filed a Petition, and on August 25, 2026, it filed
an Amended Petition for approval of transfer of structured settlement payment rights
("Petition"). The Petition seeks transfer
of certain structured settlement payment rights held by T.M. ("Payee") under a settlement
in connection with a wrongful death claim.
If approved, Payee will transfer to Petitioner 108 monthly life-contingent
payments of \$2,430.00 (beginning on June 1, 2052 and ending on May 1, 2061). In exchange, Petitioner will pay Payee
\$11,200.00.

DISCUSSION

A
direct or indirect transfer of structured settlement payment rights is not effective
unless the transfer has been approved in a final court order based on certain express
written findings by the Court. (Ins. Code,
§ 10139.5, subd. (a).)

The

transfer must be in the best interest of the payee, taking into account the welfare and support of the payee's dependents. (Ins.

Code, § 10139.5, subd. (a)(1).) When determining

whether the transfer is fair, reasonable, and in the payee's best interests, the Court must consider the totality of the circumstances, including but not limited to: (1) the reasonable preference and desire of the payee to complete the proposed transaction, taking into account the payee's age, mental capacity, legal knowledge, and apparent maturity level; (2) the stated purpose of the transfer; (3) the payee's financial and economic situation; (4) the terms of the transaction, including whether the payee is transferring monthly or lump sum payments or all or a portion of his or her future payments; (5) whether, when the settlement was completed, the future periodic payments that are the subject of the proposed transfer were intended to pay for the future medical care and treatment of the payee relating to injuries sustained by the payee in the incident that was the subject of the settlement and whether the payee still needs those future payments to pay for that future care and treatment; (6) whether, when the settlement was completed, the future periodic payments that are the subject of the proposed transfer were intended to provide for the necessary living expenses of the payee and whether the payee still needs the future structured settlement payments to pay for future necessary living expenses; (7) whether the payee is, at the time of the proposed transfer, likely to require future medical care and treatment for the injuries that the payee sustained in connection with the incident that was the subject of the settlement and whether the payee lacks other resources, including insurance, sufficient to cover those future medical expenses; (8) whether the payee has other means of income or support, aside from the structured settlement payments that are the subject of the proposed transfer, sufficient to meet the payee's future financial obligations for maintenance and support of the payee's dependents, specifically including, but not limited to, the payee's child support obligations, if any; (9) whether the financial terms of the transaction, including the discount rate applied to determine the amount to be paid to the payee, the expenses and costs of the transaction for both the payee and the transferee, the size of the transaction, the available financial alternatives to the payee to achieve the payee's stated objectives, are fair and reasonable; (10) whether the payee completed previous transactions involving the payee's structured settlement payments and the timing and size of the previous transactions and whether the payee was satisfied with any previous transaction; (11) whether the transferee attempted previous transactions involving the payee's structured settlement payments that were denied, or that were dismissed or withdrawn prior to a decision on the merits, within the past five years; (12) whether, to the best of the transferee's knowledge after making inquiry with the payee, the payee has attempted structured settlement

payment transfer transactions with another person or entity, other than the transferee, that were denied, or which were dismissed or withdrawn prior to a decision on the merits, within the past five years; (13) whether the payee, or his or her family or dependents, are in or are facing a hardship situation; (14) whether the payee received independent legal or financial advice regarding the transaction; and (15) any other factors or facts that the payee, the transferee, or any other interested party calls to the attention of the reviewing court or that the court determines should be considered in reviewing the transfer.

(Ins. Code., § 10139.5, subd. (b).)

Payee

is a single 32-year-old with a seven-month-old child. (Meniefield Decl. ¶ 8.) Payee is employed part time, earning around \$350

each day while driving for Door Dash. (Meniefield

Decl. ¶ 8.) She receives no financial assistance

from the government or from her family. (Meniefield

Decl. ¶ 8.) She also does not receive any

medical assistance for her child, but she has been trying to work with Medicare

to provide insurance for her child because she was born with a disability. (Meniefield Decl. ¶ 8.) Payee intends to use the funds to find a new apartment

because she is being evicted. (Meniefield

Decl. ¶ 12.) She also intends to use the

funds for her child's medical bills and her sister's funeral. (Meniefield Decl. ¶ 12.)

Payee

has completed eight prior transfers, dismissed one Petition, and had one transfer denied.

On

February 7, 2025, in Case No. 24STCP04081, the Court approved a transfer of thirty-six monthly payments of \$2,430.00 each (beginning on December 1, 2026 and ending on November 1, 2029) in exchange for \$56,000.00.

Those funds were intended to be used to secure more permanent housing and purchase a reliable vehicle so Payee could expand her search for employment.

On

March 3, 2025, in Case No. 24CMCP00190, a Petition was voluntarily dismissed.

On

April 3, 2025, in Case No. 25STCP00644, the Court approved a transfer of twenty-four monthly payments of \$2,430.00 each (beginning on December 1, 2029 and ending on November 1, 2031) in exchange for \$24,500.00.

Those funds were intended to be used to help furnish Payee's new apartment and stay current on bills, including a car loan, while unemployed.

On

June 11, 2025, in Case No. 25STCP01672, the Court approved a transfer of twenty-six monthly payments of \$2,430.00 each (beginning on December 1, 2031 and ending on January 1, 2034) in exchange for \$16,000.00.

Those funds were intended to be used to stay ahead of rent payments and get caught up on bills while unemployed.

On

September 16, 2025, in Case No. 25NNCP00580, the Court approved a transfer of thirty-six monthly payments of \$2,430.00 each (beginning February 1, 2034 and ending on January 1, 2037) in exchange for \$30,013.04. Those funds were intended to be used for IVF fertility treatments while single and unemployed.

On

December 12, 2025, in Case No. 25STCP04287, the Court approved a transfer of thirty monthly payments of \$2,430.00 each (beginning on February 1, 2037 and ending on July 1, 2039) in exchange for \$20,000.00.

Those funds were intended to be used for IVF fertility treatments while unemployed.

On

January 8, 2026, in Case No. 25STCP04687, the Court approved a transfer of twenty-five monthly payments of \$2,430.00 each (beginning August 1, 2039 and ending on August 1, 2041) in exchange for \$10,000.00. Those funds were intended to be used for fertility treatments while unemployed.

On

March 16, 2026, in Case No. 26STCP00406, the Court approved a transfer of eight monthly payments of \$2,430.00 each (beginning on April 1, 2026 and ending on November 1, 2026) and nine monthly payments of \$2,430.00 each (beginning on September 1, 2041 and ending on May 1, 2042) in exchange for \$18,138.17. Those funds were intended to be used for fertility treatments while unemployed.

On

May 12, 2026, in Case No. 26STCP01341, the Court approved a transfer of 120 monthly

life-contingent payments of \$2,430.00 each (beginning on June 1, 2042 and ending on May 1, 2052) in exchange for \$30,000.00.

Those funds were intended to be used for the purchase of a used vehicle.

On

July 31, 2026, in Case No. 26STCP01982, the Court denied a transfer of 144 monthly payments of \$2,430.00 each (beginning on June 1, 2052 and ending on May 1, 2064) in exchange for \$10,000.00. Those funds were

intended to be used for expenses accrued with Payee's new child while she was unemployed. Specifically, Payee "need[ed] funds to help with

[her] pediatrician bills since [her] new born [sic] has disabilities." The Court found that "[t]he exchange of \$10,000 for a total sum of \$349,920 is extremely disproportional, particularly in light of the fact that TM is unemployed without other sources of income and has an infant to provide for." The Court also observed

that "[f]rom just February, 2025, [T.M.] has sold off her right to collect \$2,430 a month from 4/1/2026 to 5/1/2052. In eight separate petitions, [T.M.] has received \$204,500, and surrendered her right to receive a total of \$775,170." The Court concluded that, "based upon [T.M.]'s prior cases and financial management, the Court cannot find such a transfer is remotely in her best interests."

With

this similar Petition, the Court shares the concerns of the Court in Case No. 26STCP01982. The Court is also concerned about the inconsistencies

in Payee's proffered reasons for the transfers.

Payee's February 2, 2026 declaration (Case No. 26STCP00406) stated that she had no minor children, she needed the funds to further her attempts at pregnancy, and she had "unfortunately been unsuccessful in [her] first round of treatments

and then conception, but the doctors still have hope." Less than three months later, Payee's April 30,

2026 declaration (Case No. 26STCP01341) stated that she had a four-month-old child. Payee's July 29, 2026 declaration (Case No. 26STCP01982)

also stated that she had a four-month-old child and remained unemployed. Now, Payee's August 6, 2026 declaration—only eight

days later—states that she has a seven-month-old child, works part-time, and is being evicted.

In

less than twenty months, Payee has received and spent \$204,651.21 while remaining unemployed, aside from her recent part-time employment. She has sold nearly all of her entitlement to future payments. Considering all the factors, under these circumstances, the Court cannot find that the transfer would be in Payee's

best interest.

CONCLUSION

The

Petition is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 22nd day of September 2026

Hon. Thomas D. Long

Judge of the Superior

Court